

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 3, 2026
8:30 a.m./1:30 p.m.

7. TYLER LINDSEY V. ANNA LINDSEY

26FL0459

On May 19, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders as well as child support, spousal support, property control, and attorney's fees. She filed her Income and Expense Declaration concurrently therewith. All required documents were served by mail on May 21st.

The parties attended Child Custody Recommending Counseling (CCRC) on July 2, 2026. They reached some agreements but could not agree on all issues. A report with the agreements and recommendations was prepared and mailed to the parties on July 7, 2026.

Petitioner filed and served his Responsive Declaration to Request for Order on August 24th. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made August 21st the last day for filing the Responsive Declaration to Request for Order.

Petitioner has not filed an Income and Expense Declaration.

Respondent is requesting sole legal and sole physical custody of the minors. She asks that any visitation with Petitioner be non-professionally supervised in accordance with the FL-311 attached to her FL-300. She is also requesting guideline child support and spousal support "to be determined upon receipt of Petitioner's I&E." She is also requesting exclusive temporary use, possession, and control of the property located on Kismet Lane in Placerville. She agrees to be responsible for the mortgage on the home. Finally, she is requesting \$5,000 in need-based attorney's fees.

After reviewing the filings as outlined above the court finds the agreements and recommendations contained in the July 7, 2026 CCRC report to be in the best interests of the minors and they are hereby adopted as the orders of the court with the following modification. Paragraphs 1 through 3 of the Alcohol and Substance Abuse section shall apply to both Mother and Father, not just Mother. The remainder of the agreements and recommendations are adopted as-is.

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Regarding the request for exclusive use and possession of the home, the court does not find grounds to make such an order at this time. The request is denied without prejudice.

Regarding the requests for child support, spousal support, and attorney's fees, the parties are ordered to appear for the hearing on these issues. Petitioner is ordered to bring with him a completed Income and Expense Declaration with supporting documents. The parties are ordered to bring their proposed Xspouse reports.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #7: THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE JULY 7, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT WITH THE FOLLOWING MODIFICATION. PARAGRAPHS 1 THROUGH 3 OF THE ALCOHOL AND SUBSTANCE ABUSE SECTION SHALL APPLY TO BOTH MOTHER AND FATHER, NOT JUST MOTHER. THE REMAINDER OF THE AGREEMENTS AND RECOMMENDATIONS ARE ADOPTED AS-IS.

REGARDING THE REQUEST FOR EXCLUSIVE USE AND POSSESSION OF THE HOME, THE COURT DOES NOT FIND GROUNDS TO MAKE SUCH AN ORDER AT THIS TIME. THE REQUEST IS DENIED WITHOUT PREJUDICE.

REGARDING THE REQUESTS FOR CHILD SUPPORT, SPOUSAL SUPPORT, AND ATTORNEY'S FEES, THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING ON THESE ISSUES. PETITIONER IS ORDERED TO BRING WITH HIM A COMPLETED INCOME AND EXPENSE DECLARATION WITH SUPPORTING DOCUMENTS. THE PARTIES ARE ORDERED TO BRING THEIR PROPOSED XSPOUSE REPORTS.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE

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TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.